

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

BAKERLY, LLC, *Complainant*

v.

SEAFRIGO USA, INC., *Respondent*.

DOCKET NO. 22-17

Served: March 22, 2023

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

AMENDED SCHEDULING ORDER

On March 21, 2023, the parties filed a Joint Status Report (“JSR”) as required by the January 12, 2023 Order on Joint Request for Extension of Discovery Deadline (“Order on Discovery Extension”). In the JSR, the parties request a second 60-day extension of the discovery and briefing deadline. The parties are reminded that “[a]ny request for action by the Commission or presiding officer must be made by motion;” a joint status report is not a motion. Initial Order at 3. Due to time constraints, the JSR request to extend the discovery deadline will be considered as a motion to amend the schedule, but further requests for action not in the form of a motion may not be entertained.

This case was initiated on July 27, 2022, at which time the initial decision of the presiding officer was set for July 27, 2023. *See* Notice of Filing of Complaint and Assignment. The original scheduling order in this case issued on September 15, 2022, ordering discovery to close on January 19, 2023, initial briefing by Complainant to be filed on March 3, 2023, followed by Respondent’s opposition brief on March 31, 2023, and Complainant’s reply brief on April 14, 2023.

Since the initial scheduling order issued, the parties have indicated that they responded to the first round of discovery requests (undated joint status report received November 8, 2022), and on December 21, 2022, jointly moved for an extension of discovery deadlines for 60-days (“Joint Request for Extension”), stating that they had “timely served and responded to discovery requests and have negotiated in good faith to resolve discovery disputes.” Joint Request for Extension at 1. The parties’ request for a 60-day extension was granted because they asserted that they had “jointly decided that mediation before CADRS could be beneficial,” and settlement is encouraged. *Id.*; Order on Discovery Extension at 1.

Now, in their current joint status report, the parties assert that they have successfully “resolved more than \$670,000 in claims previously in dispute” and are continuing discovery, but they do not appear to be in mediation with CADRS at this time, expressing that they are “reserving the right to return to [CADRS] as merited.” JSR at 1. They request an additional 60-

days to complete discovery, but they give no indication of the status of discovery other than what they expressed in November and December 2022. As a result, too little information is provided to find good cause to extend the discovery and briefing schedule for two more months. However, given that the close of discovery has already passed based on the two-month extension, the parties will be granted a short extension to the schedule to complete whatever discovery is left, but the briefing schedule will remain to allow for completion of the case within the year set by the Commission.

Good cause to extend discovery for an additional 60-days has not been found, and the parties are hereby **ORDERED** to follow this schedule:

April 3, 2023	Close of discovery.
May 3, 2023	Complainant's brief, proposed findings of fact, and appendix.
May 31, 2023	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix.
June 14, 2023	Complainant's reply brief and responses to proposed findings of fact.



Linda S. Harris Crovella
Administrative Law Judge